

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 6/26/26      TIME: 9:00 A.M.      DEPT: E      CASE NO: FL 1903264

PRESIDING: HON. BETH S. JORDAN

REPORTER:

CLERK: S. BOND

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| PETITIONER:    ASHLEY FARRAH DAVID            |  |
| and                                           |  |
| RESPONDENT:   BRENDAN OWAIN-<br>MICHAEL DAVID |  |

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NATURE OF PROCEEDINGS: REQUEST FOR ORDER – CHILD CUSTODY/VISITATION

**RULING**

This matter is set for hearing on Petitioner/Mother’s 4/30/2026 Amended Request for Order (“RFO”) re: modification of the existing 4/16/2025 child custody/visitation order concerning the parties’ children, John Jay (DOB 3/17/2017) and Penelope (DOB 10/11/2018). The 2025 order provides that the parties share joint legal and physical custody; and that the children are with Mother during the school year on alternate weekends from Friday after school through Sunday at 7 pm, and on each Thursday for an afternoon/evening visit until 7 pm. During the summers, the parties alternate weeks.

Mother requests she be given joint legal custody with joint physical custody. She lives in Fairfax, Father lives in San Francisco, and the children attend school at San Francisco Waldorf School. However, as of 5/27/2026 John Jay was suspended for threatening to seriously harm himself and another child. John Jay is currently enrolled in KFS School for children with ADHD; and he is also being assigned a child psychiatrist and therapist through Richmond Area Multi Services (“RAMS”) in San Francisco. Mother requests that the children live with her and attend Manor Elementary school in her neighborhood; she believes they will be better served in public school, and is very concerned about John-Jay’s behavioral issues, which she says have continued to become more serious. The Waldorf School confirmed that the instances of John Jay’s behavioral dysregulation have escalated. She is also concerned that the Waldorf School does not respond to her inquiries regarding the children, and Father has made a number of unilateral decisions regarding the children without consulting with her.

Father filed a Responsive Declaration on 6/4/2026. He states that Mother does not exercise the time-share she already has with the children, often foregoing time she could have with them, does not attend the children’s school activities or conferences, or any special events, and often asks Father to pick up the children, saying she is not well. Father is open to changing to a public

school for John Jay but wants to keep him in school in San Francisco. Father is concerned about Mother's being able to maintain stable housing for the children.

The parties were referred to Family Court Services ("FCS"), and the Custody Recommending Counselor interviewed Mother, Father, John Jay and Penelope. The Court has reviewed and considered the written submissions by the parties, the history of the case, and the current and previous FCS Reports & Recommendations and agrees that recommendations are challenging. All prior orders not in conflict with the below shall remain in effect with the following modifications.

1. John Jay shall be assessed by a child psychiatrist regarding his emotional dysregulation episodes. Parents shall follow all reasonable medical recommendations following this assessment including ADHD medication or other medication if recommended. Both parents shall provide input to the child psychiatrist during this assessment.

2. John Jay shall engage in therapy as recommended by his assessment with the child psychiatrist.

3. Summers: Parents shall continue with an alternating week schedule for the remainder of the summer (except for pre-scheduled summer vacation periods for each parent). Each parent shall have one two-week block of vacation time with the children each summer. Parents shall select their vacation blocks by April 1 of each year. Mother shall have first choice in odd years. Father shall have first choice in even years. For the remaining weeks of summer that are not scheduled vacation blocks, parents shall continue to alternate weeks.

4. Commencing school year 2026 – 2027, which begins on 8/18/2026, the children shall be enrolled at Manor Elementary in Mother's school district for a trial period of one academic year.

5. If recommended by the school district in Marin, John Jay shall undergo additional educational and behavioral assessments to determine what support services he requires at school.

6. The children shall be in Mother's custody during the school week (Monday through Friday) and the second weekend of each month when the 2026 – 2027 school year commences. The children shall be in Father's custody on the first, third, and fourth weekends of the month from Friday after school through Sunday 7 PM. If the morning commute from Father's home in San Francisco to Manor is less than 35 minutes (or some other length of commute time deemed reasonable by the court), the children may spend Sunday overnights with Father on his weekends, and Father (or another responsible adult designated by Father) shall drop the children off at school Monday morning. Sunday overnights are contingent on the children getting to school on time on Mondays.

a. If Monday is a school holiday, the children shall remain in Father's care until Tuesday morning return to school (or if Father is unable to get the children to school on time, then Sunday at 7 pm).

b. The parents shall equally share time with the children during school breaks.

7. The children shall attend school consistently and regularly. The children attending Manor and living with Mother during the school week is contingent on Mother ensuring the children get to school on time and attend consistently.

a. Mother shall not relocate with the children outside of the Manor school district without a Court order.

8. Neither parent shall make unilateral decisions regarding the children's health care and education, and each shall ensure that the other parent is kept advised of any and all developments regarding the children's health, safety and education, including insuring that all providers and educators are aware that both parents need to be advised of any developments, problems or concerns regarding the children.

9. Corporal punishment shall not be inflicted on the children by any caregiver who takes care of the children. This includes slapping, pinching, etc.

10. The children shall not be exposed to violent outbursts of anger by other adults who care for the children when in the home of either parent. This includes objects being thrown in anger, etc.

11. Alcohol shall not be left accessible to the children in either parent's home.

12. Father shall not consume alcohol to the point of impairment when he has custody of the children.

13. Mother shall not be under the influence of prescription medications that would impair her ability to appropriately parent the children. If Mother is unable to care for the children due to her medical issues, she shall give Father first right of refusal to care for the children.

14. Per an agreement reached in mediation, parents shall immediately commence co-parenting counseling.

15. Penelope shall be assessed by a therapist to see if she could benefit from participating in therapy.

16. Parents shall not interrogate the children about their interviews with FCS, nor shall they allow other family members to do so. The children shall not be made to suffer emotional retaliation for what they reported during their interviews. This FCS report shall not be shared with extended family members or anyone else.

17. A custody review hearing is set for 1/15/2027 to assess how the children are doing in their new school placement.

**SO ORDERED.**

The Court will prepare the order per Rule 5.125, CA Rules of Court.

*Any party who disagrees with the Court's tentative ruling and wishes to have oral argument must notify the Court at (415) 444-7046 and opposing counsel (or if the opposing party is self-represented, notice must be given directly to the opposing party) of their intent to appear at the hearing for oral argument **by 4:00 pm on the court day before the hearing**, as required by Marin County Superior Court Family Law Local Rules 7.12(B) and (C). Notice may be given by telephone or in person. Absent proper notice, no oral argument will be permitted. If no request for oral argument is made, the tentative ruling will become the order of the Court.*

*Unless otherwise ordered by the Court, persons who requested oral argument must appear for the hearing in person or remotely via Zoom, in accordance with the Comi website guidelines. If appearing remotely via Zoom (video or telephone), you are responsible for ensuring you have adequate connectivity; the Court may proceed in a party's absence if technical issues arise. Proper Zoom etiquette and courtroom decorum are required, and failure to comply may result in the hearing being halted and an order to appear in person being made.*

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 6/26/26      TIME: 9:00 A.M.      DEPT: E      CASE NO: FL 2101418

PRESIDING: HON. BETH S. JORDAN

REPORTER:

CLERK: S. BOND

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PETITIONER:    KIRSTEN TOLSTRUP

and

RESPONDENT: MASSOUD AKHTARI

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NATURE OF PROCEEDINGS: REQUEST FOR ORDER – SPOUSAL SUPPORT

**RULING**

This matter is set for hearing on Petitioner/Wife's 4/6/2026 Request for Order ("RFO") to terminate the spousal support she pays Respondent/Husband of \$5,000/month.

The Court notes that Wife has not complied with Marin County Local Rule, Family 7.8(F), which requires the parties to submit an Address Verification Declaration (Local Form FL070). Without the Address Verification, the Court has no way of knowing if Respondent/Husband was properly served. Therefore, the Court orders as follows:

1.    Wife shall comply with Marin County Local Rule, Family 7.8(F) forthwith.
2.    The matter is continued for hearing to 8/14/2026 at 9:00 am in Department E to provide Wife with sufficient time to confirm Husband's address, serve him, and to provide Husband sufficient time to respond.

**SO ORDERED.**

The Court will prepare the order.

*Any party who disagrees with the Court's tentative ruling and wishes to have oral argument must notify the Court at (415) 444-7046 and opposing counsel (or if the opposing party is self-represented, notice must be given directly to the opposing party) of their intent to appear at the hearing for oral argument **by 4:00 pm on the court day before the hearing**, as required by Marin County Superior Court Family Law Local Rules 7.12(B) and (C). Notice may be given by telephone or in person. Absent proper notice, no oral argument will be permitted. If no request for oral argument is made, the tentative ruling will become the order of the Court.*